

CHAPTER 1

A Sweeping History of Just War Theory

“Some political theories die and go to heaven;
some, I hope, die and go to hell.
But some have a long life in this world ...”

*Michael Walzer*¹

People have wrestled with the ethics of war and peace since the beginning of human history, not just in Western civilization but worldwide. Almost all major civilizations—from the ancient Egyptians to the Aztecs, from Babylonia to India, from China to ancient and contemporary Europe—have featured fairly fixed beliefs about acceptable reasons for going to war, and permissible means of fighting it.

Nearly all the major religious documents—from the Bible to the *Bhagavadgita*, from the *Tao-te-ching* to the *Koran*—refer to warfare and moralize about it.² The Old Testament, for instance, is filled with fierce battles. Yahweh and the prophets repeatedly permit, or even command, the Israelites to go to war against their enemies, such as the Canaanites. Sometimes the commands seem quite bloodthirsty, other times restraint in fighting is urged.³ Jesus, by contrast, fills the New Testament with words and actions which seem at least anti-war and are, perhaps, at most pure pacifism. The Prince of Peace, as Christians know him, once famously commanded Peter to put away his sword.⁴ Sun Tzu’s *The Art of War*—from ancient Oriental civilization, yet often taught in today’s Western business schools—details various kinds of battle, and the strategies required for victory. Yet it, too, includes a kind of ethic: of fighting only smartly and with honour, and not with rage, blunder and bloodlust.⁵ So, in a way, the ethics of war is everywhere, and is as old as the hills.

One of just war theory’s credits is that, over time, it has developed probably the most comprehensive consideration of the ethics of war and peace. So, even though just war theory first developed in the West—and, more narrowly, among Roman lawyers and then Catholic theologians—it genuinely deserves universal attention. The fact that just war theory has had such an impact on international law—which is truly global—only emphasizes how important it is for anyone wanting to think incisively about the ethics of war and peace. Just war theory, we saw in the Introduction, is a coherent set of concepts and

values which enables moral judgment in wartime. Traditionally, it is split into two categories: *jus ad bellum* (i.e., when it is just to start war) and *jus in bello* (i.e., how it is just to fight war, after it has begun). International law, by contrast, refers generally to treaties freely agreed to by sovereign states, wherein they promise to behave in a way detailed by the treaty. Treaties are like international contracts between states. And so the concepts and values first originating in the moral philosophy of just war theory have, over the centuries, made their way into binding treaties regulating state conduct during war—treaties we collectively refer to as “the laws of armed conflict.”⁶

The purpose of this opening chapter is to sketch out the history of just war theory itself: *who* contributes *what*, and then *when* and *why*. Above all: what’s the context here? Which events and personalities are crucial? Which mistakes get made, and strengths endure? What are the trends and cycles, changes and debates? Where did we come from in this regard, and where are we heading? It must be stressed, however, that all which can be offered in one chapter is but a sweeping sketch. This book is not mainly a history book. It is a book about the ethics of war and peace *in our time*. So, while whole books could be written about each of the following paragraphs, it is not our goal to know every little detail and personality in the very long history of just war theory. The goal, rather, is to hit the high points and, above all, *to set the context for the concepts* which are going to be detailed in subsequent chapters.

The Greco-Romans

So where does just war theory specifically come from, and why should we care? Paul Christopher credits ancient Greek philosopher Aristotle (384–322 BC) with being the coiner of the term “just war.”⁷ This concept was in contrast to the older idea of a “holy war,” as mandated by some Divinity and described in some of the religious texts mentioned above. Just war theory is, at heart, a secular concept (i.e., a way of thinking about war’s rightness or wrongness without appealing to God or scripture). But we’ll see that, historically, just war theory does come to be associated, for some time, with Christianity and, more narrowly, Catholicism.

Aristotle, and his teacher Plato (427–347 BC), reflected on war’s justice, no doubt spurred on by all the wars fought between Greeks and Persians and, indeed, amongst the Greek city-states themselves. Plato, for instance, grew up during the destructive Peloponnesian War between Athens and Sparta and it profoundly affected his life and thinking. Aristotle, for his part, thought it morally justified to go to war to prevent one’s community from being attacked and enslaved by another. Just war theorists today agree that self-defence is the most obvious just cause for war. More controversially, Aristotle thought it all right to go to war to gain an empire, provided: 1) this empire would benefit everybody, including the conquered; and 2) this empire would

not become so large and rich that it would attract attackers and hence result in more wars. Most notoriously, and appallingly, Aristotle did allow warfare to gain slaves for one's community—providing that such slaves were “naturally servile” to begin with. Not a single just war theorist would today endorse these last two propositions but the empire issue retains real life. For example, does America now have an empire? Has it come by this empire justly? Have its many recent wars been those of defence or, rather, of expanding and fortifying its dominion?⁸

After the Greeks came the Romans, and they clearly did have an empire. The shattering success of Rome upon the battlefield provoked thought amongst such luminaries as the senators Cato and Cicero and emperors Julius Caesar and Marcus Aurelius. Cicero (106–43 BC) probably developed the deepest reflections on war amongst them, and probably deserves credit for co-founding just war theory with Augustine (still to come) and, perhaps to a lesser extent, Aristotle. James Turner Johnson's observation—that just war theory is, in its origins, *a synthesis of Greco-Roman and Christian values*—rings true.⁹ Cicero endorsed wars of self-defence, and was not immune to the allure of empire. Crafty lawyer he was, though, in framing his support for imperial expansion with the rhetoric of defence: defence of Rome's *honour or glory* might call for wars of empire where defence of Rome's *safety* strictly might not. But Cicero rejected wars for gaining slave labour. He was also a stickler for procedure. And so, to Aristotle's primordial just cause requirement for a decent war, Cicero added the rules of proper authority and public declaration.

So often did the Romans find themselves in battle that they developed a formal procedure for going to war. Rome would first send a diplomatic party—ambassadors and their aides—to the target city or rival empire, announce the problem and demand rectification. The party would return to Rome and wait for a month. If nothing satisfying happened, the party would return to the enemy and threaten war. If they did not get an immediate, positive reply, the party would return to Rome and inform the Senate (seen as the proper authority for deciding war). If the Senate voted for war, the party would return to the enemy, read aloud the Senate's public declaration and then symbolically throw a sharp-pointed javelin into the enemy's soil. The party would then, obviously, quickly evacuate before the Roman army invaded and, more often than not, conquered. There are, in this procedure, some shades of the later rule of war only as a last resort: the military had to hold off until the political procedure had worked itself out to the end. Cicero also insisted on vague rules of right conduct in fighting, too. He commented repeatedly on the need for restraint in battle, and advocated loudly and effectively that soldiers surrendering to Rome deserved to be protected rather than slaughtered. Those who refused to surrender, however, deserved a different fate in Cicero's eyes.¹⁰

Early Christianity and Augustine

Church father Augustine (AD 354–430) is often credited with inventing just war theory all by himself. This is a huge exaggeration which downplays the Greco-Roman contribution, which we have just seen is substantial. Indeed, Augustine was not even the first Christian thinker to consider the justice of war: Tertullian (AD 160–230); Origen (AD 185–255); Lactantius (AD 260–340); and Augustine’s mentor Ambrose (AD 340–397) all made contributions. Indeed, Ambrose added content to Cicero’s vague *jus in bello* by stressing that soldiers should strive to display the classical virtues while fighting. These were courage, prudence, justice and moderation. More significantly, Ambrose added to the Greco-Roman rules of *jus ad bellum*—just cause, proper authority, public declaration, last resort—by saying that wars approved by God were also just. Augustine followed Ambrose in this regard, with the effect being a blurring of the line between *just* wars and *holy* wars which was to last about 1,000 years, and provide ostensible support for the pope-ordered Crusades—of Christianity against Islam—between approximately AD 1000 and 1300.¹¹

Taking all this in, it is very hard to conclude that Augustine was the sole founder of just war theory. He was, however, a very high-profile and influential proponent of the theory, and Christianity’s subsequent triumph in Western civilization led later thinkers to want to identify a Christian, rather than a Greco-Roman pagan, as the founder. (If we have to put names and faces on the foundation of just war theory, it would probably be the triumvirate of Aristotle, Cicero and Augustine. Traditions take some time to be created and congeal.) Augustine did add to the theory in an original way. He insisted on the rule of right intention, both in *jus ad bellum* and *jus in bello*. Augustine wrote during a time when Christianity had become—thanks to the emperor Constantine—the official, state-sanctioned religion of the Roman Empire. How could one, consistently, be both a Christian and a public official of Rome—especially when the Empire was coming under increasing armed attack from non-believing barbarians? Christianity seems, after all, to imply love and non-violence whereas the responsibilities of Roman officials regularly involved deploying armed force to hold the Empire together and keep the barbarians out. Augustine wrestled greatly with this dilemma, and concluded that a just ruler might permissibly use force to protect the innocent (i.e., ordinary civilians) from aggressive attack. *A Christian ruler has to show love for his own people*. But such a ruler must order war with only the greatest reluctance, and not with any pleasure or hatred for the enemy whatsoever. The right intention must be love for, and desire to protect, the endangered innocents. Soldiers executing this command of the ruler must likewise get no joy out of bloodlust and violence but, rather, should protect the innocents and fend off the guilty attackers with nothing but solemn duty as their focus. So, in addition to objective just causes, like defending one’s community, there is

the subjective requirement of being strictly motivated by love and duty alone. Augustine summarized his thoughts this way:

The real evils in war are love of violence, revengeful cruelty, fierce and implacable enmity, wild resistance, and the lust of power, and such like; and it is generally to punish these things, when force is required to inflict the punishment, that, in obedience to God or some lawful authority, good men undertake wars.¹²

The Dark Ages and Holy Wars

The Roman Empire collapsed in Western Europe in the 400s AD, fragmenting in the face of repeated barbarian invasions. It had grown too large to govern efficiently, and too often its governors were corrupt and incompetent. It managed to endure in the Near East for over a thousand years more, but in the West the only institution to survive the collapse of Roman civilization was the Catholic Church. The western empire otherwise dissolved into a series of small ethnic groups, and tribe-like families, and many wars between them ensued. Not much information survives from this period, and so we call it the Dark Ages. What little does survive tells us, sporadically, of an anarchical and bloody existence, a dirty and decrepit life. Europe took major steps back during the Dark Ages, which lasted anywhere from 500–1000. At the same time, Islamic civilization in Persia and Africa, and Far Eastern civilizations in China and India, flourished.

During the Dark Ages' later years, starting around 800, attempts were made by ambitious local warlords to consolidate their control over larger pieces of territory. Alfred did this in Britain and Charlemagne on the Continent. While not immediately successful, these efforts pointed the way towards the future: local tribal heads gradually winning control over larger and larger pieces of territory, declaring themselves champions of the people in the process. They re-established law and order by force of arms, farm-by-farm and forest-by-forest. A handful of such warlords eventually became self-styled kings, monarchs of their realms. All the while, such warlords had to deal with the Church: its longevity; its land holdings; its moral authority over its flock. Most warlords were eager to win the Church's approval, for it was a powerful ally and could provide to their rule no better stamp of legitimacy. As a result, many European warlords heeded the call when the Church demanded a series of military crusades, between 1000–1300, against the encroachment of Islam into Europe. These Crusades were massive armed invasions of Muslim strongholds in Eastern Europe, the Middle East and North Africa.¹³

What exactly is the difference between just war and holy war, especially since so many early Christian thinkers conflated the two? A holy war (*bellum sanctum*) is a war approved of—either commanded or permitted—by God. The approval is thought to come from sacred scripture itself or from religious

authorities, such as the pope. Pope Urban II, in 1095, inaugurated the First Crusade by declaring “*Deus Veult!*” (i.e., “God wills it!”). God was thought to “will” that Christians would re-take Jerusalem from Islamic control and prepare it for Christ’s second coming. The Christian conquest of that city did indeed happen in 1099. The Muslims, under Saladdin, later took it back, and the Second and Third Crusades were motivated to recover it. The other main feature of a holy war (labelled a “*jihad*” in the Islamic tradition) is that soldiers fighting on behalf of the cause are seen, thereby, to be cleansing their sins and paving their entry into Paradise. Salvation of self, so to speak, through mutilation of others. A just war (*bellum justum*), by contrast, is not thought to be sacred, merely moral. There is no pretence of having divine approval, rather merely good reasons (like self-defence) for fighting a war. And while soldiers fighting just wars might be thanked or even praised (e.g., on Remembrance or Veteran’s Day), there is no claim that their participation in the war has guaranteed them membership in Heaven. We see, then, that there need be *no necessary connection at all* between doctrines of just war and those of holy war. But Dark Age Christians, especially those involved in the Crusades, did forge such a connection—and so *jus ad bellum* became, frankly, polluted with some dark religious dimensions, like self-righteousness, inflexibility, demonization of others and fanaticism. It was to be a long time before such pollution was met with sufficient dilution, and today no just war theorist endorses the holy war concept as a good reason to go to war.¹⁴

While perhaps regressing on the *jus ad bellum* side, this era did manage big progress on the *jus in bello* front. Great specificity was added to Cicero’s vague calls for moderation, Ambrose’s insistence on fighting with virtue and Augustine’s command for purity of intention. Two papal edicts—the “Peace of God” of 989 and the “Truce of God” of 1027—combined with the Second Lateran Council of 1139 and Gratian’s *Decretum* of 1148 to form quite concrete and sensible rules of *jus in bello*. Non-combatants were specified—notably, women and children—and held to be ethically immune from attack or hostage-taking. A whole range of new weapons were prohibited, including cross-bows and anything—swords and arrows especially—dipped in poison or pestilence. Attacks on food sources, like crops, were completely ruled out, and churches officially declared “sanctuary” from military and indeed police activity. The sources of these rules were the Bible, Augustine’s writings, experience with the new weapons, and even aristocratic sporting tournaments (featuring jousting) and their customs regarding fair play and chivalry.¹⁵

Aquinas and Legitimacy

By the time of Thomas Aquinas (1225–1274), we can properly speak of a reasonably settled and articulated “just war tradition,” with many different people deploying the same concepts and values in aid of judging the same thing, in this case warfare—and often arriving at very similar conclusions.

We have at this time clearly separate and quite developed categories of *jus ad bellum* and *jus in bello*. Under the former, we have rules of just cause, right intention, public declaration by a proper authority and not exactly last resort but something like “give the enemy a chance to make amends before fighting.” Under the latter, we now have non-combatant immunity, right intention, non-use of prohibited weapons, an obligation to accept offers of surrender without slaughter and something like “behave with virtue and chivalry on the battlefield.” This constitutes, over 1500 years, huge theoretical progress from Aristotle’s quick reflections on just cause. Aquinas was quite impressed with Aristotle’s philosophy and, to the existing set of rules, the Italian theologian added proportionality to each category. This was good Aristotelian sense: war should be a proportionate response to the grievance (i.e., the problem should be so severe that only fighting seems the way to solve it) and the quantum of force deployed should be appropriate to the objective at hand on the battlefield. Aquinas also invented something called the Doctrine of Double Effect (DDE), which has important applications within *jus in bello*, and we will discuss them in subsequent chapters. Aquinas was also a transitional figure on two issues. The first is the acceptability of holy war as a just cause. Aquinas notably backed off here, saying that defensive wars to protect Christians from death (or severe persecution) at the hands of non-Christians *might* be permissible but aggressive wars designed to coerce non-believers into Christianity *definitely* are not. Jesus, after all, did not create Christians by cracking skulls. The spotty record of the Crusades also prompted Aquinas to pour cold water on the holy war concept. Unfortunately, the idea would still come and go, at least in the West, until Hugo Grotius’ authoritative proclamations against holy wars in the early 1600s. Truly, even after that, holy-war-style rhetoric has been known to infect justifications of war to this very day.

Aquinas also marks a transition on the important issue of proper authority for declaring war. In Greece, the proper authority was the head of state, whether dictator or democratic assembly. In Rome it was the Senate and, during the late Empire, the Emperor. During the Dark Ages, it was the Pope. But in the run-up to Aquinas’ life, there was a very fluid political situation in Europe. There was still the Pope and the Church, of course, but there was also the development of these tribal or national kings, like King John in England. Furthermore, some areas of Europe were essentially Greek-style city-states, like Venice. There were also very wealthy trading enterprises, with their own private militias or armed security corps—some so powerful they dwarfed those of towns and other political associations. Also sporting private militias were aristocrats out to challenge the king, on the belief that their families were just as entitled to the throne. Aquinas, perhaps surprisingly, did not side with the Church. Not so surprisingly, he condemned the private militias and armed trading companies. He favoured the non-proliferation of armies, so to speak. Common sense told him: the more armies we have got,

the more likely they'll step on each other's toes and start fighting. Aquinas' middle-of-the-road solution was that only genuinely *political*—and not merely *mercantile*—associations could declare war, and the body which spoke for the political association was that: 1) capable of ordering that society; and 2) demonstrating clear intentions to rule for the common good of all (as opposed to the private greed of some, such as ambitious barons, dukes and earls). Essentially, then, Aquinas favoured more central authority, like a national king or prince, but still strongly advised such a ruler to heed the advice of the Church, with its centuries of experience in developing and applying just war theory. In this sense, Aquinas sided with the rise of the modern nation-state.¹⁶

Vitoria and The Spanish Conquest

It is important to note that, from the beginning, just war theory has been applied to real world conflicts and has served not just to *legitimize* but also to *criticize* the conduct of the powers that be. Augustine, it is true, was mainly looking for a legitimation of state violence: he wanted to square public Roman control with his private Christian beliefs. But later thinkers realized that when a state (or prince) fails to meet the standards of just war theory, then it (or he) must be morally criticized and urged to stop. For instance, in Spain in the early 1500s, numerous figures used just war theory to condemn Spain's aggressive invasion and colonization of parts of the New World. Spain was motivated neither by love nor by any kind of defence or protection, they said. The kingdom, delighted by Columbus' 1492 discoveries, became instead driven by greed and love of power and conquest, and the harsh treatment of the natives by the infamous conquistadors, in addition to being evil in itself, revealed this.

Key figures involved in the debate over the justice of the Spanish Conquest were: Bartolome de las Casas (1474–1566); Sepulveda (1490–1574); Francisco de Vitoria (1492–1546); Francisco Suarez (1548–1617); and Alberico Gentili (1552–1608). Sepulveda and Gentili tried to use just war concepts to justify the conquest, with Sepulveda even resurrecting Aristotle's old canard about natural slavery. De las Casas, by contrast, offered a clear, eloquent and principled denial and critique. The entire faculty of the University of Salamanca, in 1520, bravely resolved in public that Spain's actions constituted an unjust war. It is important, indeed, to note that European colonialism and imperialism did not proceed with unanimous support. Vitoria's work has stood the test of time as the deepest theoretical contribution from this fertile period.¹⁷

Vitoria was the first to say clearly that even non-Christian communities have the rights implied by *jus ad bellum* (notably, a general right not to be attacked). He rejected the concept of holy wars and insisted on the secularism of just war theory. He helpfully suggested that all plausible just causes for going to war be subsumed under the one concept of “a wrong received.” He

thus banned both aggression and pre-emption (because the wrong had *to be received* before one could justly respond to it). On this latter point, he memorably commented: “It is quite unacceptable that a person should be killed for a sin he has yet to commit.”¹⁸ Vitoria did allow for armed humanitarian intervention as a kind of war of “other-defence.” He actually justified the Spanish Conquest on this basis, at least in terms of just cause. He sharply criticized Spanish intentions of greed and power but did believe that the Conquest liberated the natives of the Americas from indigenous oppression and such brutal home-grown practices as human sacrifice and ritualized cannibalism. So self-defence and other-defence were, for Vitoria, the only just causes for going to war, and in either case it had to be defence from attack which already occurred and not from an imagined one merely suspected to come in the future.

One of the most important contributions made by Vitoria was his stress on the quality and objectivity of the evidence needed to support a decision to go to war. Vitoria strongly rejected the idea that the ultimate decision should rest with only one man—even the king—since any given man is subject to strong emotions and subjective biases. A just ruler must first invite counsel from groups of wise men, learned in just war theory *and who represent different opinions about the war action contemplated*. A hawkish ruler surrounding himself only with “yes men” is not being responsible and may find himself ordering, and then later accountable for, an ultimately unjustifiable war.¹⁹

Grotius and The Wars of Religion

Hugo Grotius (1583–1645) was similarly motivated by the colonial experience, in his case the Dutch, and particularly in the Caribbean Indies. His landmark work, *The Law of War and Peace*, was also driven by the terrible Wars of Religion—between Catholic and Protestant—then rocking Europe in the wake of the Protestant Reformation and the end of the Catholic Church’s religious monopoly over Western Europe. The savagery of the fighting in both the New World and the Old concentrated Grotius’ mind powerfully, and he vowed to do what he could to bring warfare within the confines of law once more. One of his biting remarks, in this regard, was that: “Throughout the Christian world I have seen a lawlessness in warfare that even the barbarian races would think shameful. On trifling pretexts, or none at all, men rush to arms and when once arms are taken up, all respect for law, whether human or divine, is lost as though by some edict a fury had been let loose to commit every crime.”²⁰

Grotius’ work—not so much original as painstaking, comprehensive and plausible—is credited not only with being one of the landmark pieces of just war theory but also as the first product of the laws of armed conflict. Grotius thus straddles the gap between morality and law; he wrote that the very point

of law is to realize the ideals of morality. Not surprisingly, given the Wars of Religion, Grotius was a relentless secularizer, echoing Vitoria's rejection of holy wars and essentially sealing the debate on that issue for the remainder of the just war tradition (though not, as we noted, in popular political culture). Religion is a matter of conscience and choice, or at least for each nation to decide for itself, he wrote, and so it cannot figure into any just cause for war. On just cause, Grotius essentially shared Vitoria's understanding of self- and other-defence. Grotius did go further, however, in specifying that it was allowable not merely to defend against aggression *in the process of happening* (whether against self or others) but also to punish *past* aggression which still stood uncorrected. Grotius, as a lawyer, was big on there being concrete penalties for violating principles, and so wars of punishment (as well as defence) figured into his system. He actually justified some of the colonial conquests as punishment for iniquitous (ungodly?!) practices on the part of the natives. He also contributed the criterion of probability of success to *jus ad bellum*: one should only go to war if one has a decent chance of winning. It is, I suppose, to be lamented that the two just war giants from this period—Vitoria and Grotius—both supported the *causes* behind European colonial conquest, viewing them as justified forms of other-defence or humanitarian intervention. That's true but both also criticized the intentions of the European imperialists and so, in the end, took a rather dim view of colonialism or, at the least, viewed it as a mixed bag of crimes and benefits.²¹

We can see that, with Grotius, most of the general principles of modern just war theory became set. Disagreements about what the theory exactly implied in terms of each particular war, of course, remained—and just cause remained especially contentious, and does so to this day. But the essentials were all in place, and indeed a new focus for the theory developed: getting nation-states to agree to the general moral principles in exact, formal, written, legal treaties. Just three years after Grotius' death, the Treaty of Westphalia (1648) brought the Thirty Years War (the bloodiest of the Wars of Religion) to an end. Often seen as the first piece of modern international law, Westphalia enshrined a form of tolerance over religion, with national signatories pledging not to go to war with each other in an attempt at armed conversion. A principle of non-intervention in "the internal affairs" of other nations was generated, and just war theorists Samuel Pufendorf (1632–1704) and Emmerich Vattel (1714–67) solidified this trend by rejecting humanitarian intervention as a just cause for war. This strong interpretation of state sovereignty, and hostility to any foreign intervention in local affairs, was to endure almost to the end of the 1990s. The prevailing interpretation of just cause was thus: defence of one's nation from foreign attack; defence of another nation (especially one's ally or friend) from foreign attack; and possibly (depending on the theorist) pre-emptive attack. Punishment was not generally accepted, and humanitarian interventions were largely prohibited. State sovereignty reigned supreme.²²

Locke, Kant and The Revolutionary Era

Other prominent thinkers, such as John Locke (1632–1704) and Christian Wolff (1679–1754), wrote in a just war vein in this era of Pufendorf and Vattel. But they failed to add much of originality to the theory. Increasingly, the just war tradition declined in prominence because it dealt with war *between* states whereas the issue increasingly at hand was the right to make a war of revolution *within* a state or empire. Here, of course, Locke had much of import to say and his writings partly inspired the American Revolution (1775–83) and, through it, the French Revolution (1789–1800).²³

Now, the question of revolutionary war can logically be incorporated within just war theory. It is, after all, a form of war—indeed, a kind of civil war. As such, it would fall under the principles to be defended in Chapter 3. These principles, we’ll see, revolve around the legitimacy (or moral adequacy) of the state in question. Locke remains the classical source for insisting that, to be legitimate, a government must respect the natural (or human) rights of all its individual citizens to life, liberty and property (and—Thomas Jefferson added—the pursuit of happiness). A government which fails in this regard is illegitimate and, should it forcefully resist reform, it may be forcibly resisted and overthrown in turn, paving the way for a rights-respecting regime which the people support and recognize as their government. Locke’s work on violent revolution is perhaps the first clear linkage between *jus ad bellum* and human rights, a linkage which was to be cemented following World War II and which remains absolutely central today. But Locke did not think of himself as a just war theorist, nor did the tradition embrace him in return. This is unfortunate since Locke drew on Aquinas; indeed, venerable old Aristotle had much to say about revolutionary struggles. Perhaps Locke’s staunch Protestantism prevented a complete connection to what then remained very much a Catholic or “scholastic” doctrine.²⁴

This religious difference also prevented Immanuel Kant (1724–1804) from making a connection with the just war tradition. Indeed, Kant explicitly distanced himself from the tradition, even poked sarcastic fun at its classical figures. However, as I have shown elsewhere, Kant’s thoughts on war and peace shared much of the moral logic of just war theory as it existed in his day—with one big exception. This was the whole issue of *jus post bellum* (or justice after war). More than any other thinker before him, Kant reflected intensively on the justice of peace treaties, of forcing regime change, of post-war reconstruction and of what might be needed for longer-term peace between nations. In particular, Kant favoured widespread internal regime change in the direction of rights realization, and thought some international policies—like diplomatic engagement, cultural linkages and free trade—would help bring this about. Pro-rights societies, he predicted, would eventually band together to form a prosperous, peaceful federation of free nations. Their success, in turn, would spur other nations to change internally so as to

join the club, and a kind of peaceful “cosmopolitan federation” would grow and grow.²⁵

In my view, we can all but credit Kant completely for inventing *jus post bellum*. It is true that Vitoria, for one, did insist that justice after war had to be part of just war theory—but he failed to add content to this observation. It is also true that just war theorists stretching all the way back to Aristotle intoned that peace must be the sought-after goal in war. But this assertion is banality itself: *every war ends in peace*, including an unjust one. This is to say that even an aggressor aims at, and looks forward to, the peace at the end of the conflict. The real question is: what kind of peace can justly be imposed via war? And on that difficult issue, there was fundamental silence, or else sweeping vagueness, until Kant came along. Indeed, to this very day a shockingly large number of just war theorists completely ignore *jus post bellum*. But they cannot do that and pretend they have a complete theory. We have Kant to thank for priming the pump of our thoughts on this issue, which is so vital to our own times. *Jus post bellum* will be discussed in Chapters 6 and 7.

The Coming of Codification

It really is remarkable that it was not until the mid-1900s that just war theorists equal to the stature of Grotius, Pufendorf and Vattel appeared. Many of the figures in the period 1750 to 1950, evidently believed that the existing synthesis could not be much improved upon. And those who did clearly improve upon the status quo—like Locke and Kant—were not recognized as card-carrying members of the tradition. There is another factor relevant in the explanation: after 1850, there is a veritable explosion in the number of international treaties and laws regulating armed conflict, in particular *jus in bello*. Grotius’ dream of codification came true—two hundred years after his death. The period 1850–1914 was extremely fertile in this regard. I have no doubt that many of the diplomats, academics and lawyers who worked on such treaties and codes would have made first-rate just war theorists. But the opportunity was ripe for them to engage in legal construction instead of theory-building, and so pragmatically they chose the former. This may have come at the price of anonymity but the gain was the world’s first formal codes enshrining just war principles within law.

The US Civil War was a major spark in this regard. The North or Union side, in 1863, issued very detailed instructions—on proper ways to fight—to its soldiers. These *jus in bello* rules were called the “Field Army Manual,” or “Lieber’s Code” after their author. European powers, for their part, signed the Declaration of St. Petersburg in 1868, which prohibited certain bullets and projectiles. The American Civil War also brought into stark relief moral issues of *jus ad bellum* (e.g., the justice of fighting a war to end slavery) as well as *jus post bellum* issues of proper post-war pacification and reconstruction of

the vanquished enemy. In these manifold senses, this war remains a very relevant case for even the most contemporary just war theorist.

The culmination of this nineteenth century move towards codification (i.e., translating moral principles into specific legal codes) was the Hague Conventions, drafted and proclaimed in ten different treaties between 1899 and 1907. Incredibly detailed, particularly with *jus in bello* rules, they stand today as living and active pieces of international law which are a credit to their authors. They stand, in many ways, as the complete realization of Grotius' dream as far as he could have foreseen.²⁶

World War I and Collapse

Grotius could not, of course, have foreseen the scale and depth of World War I (1914–18), which shocked the conscience of the world and provided an ugly birth to the ultra-violent twentieth century. The war—begun as a struggle of imperial rivalries between Germany, Austria-Hungary and Turkey on the one side and Britain, France and Russia on the other—degenerated into a long and tragic slaughterhouse of destruction. The human meat grinder which was this war ended its destruction only after America intervened in 1917 on the side of Britain and France. It is fair to say that the bleak experience of World War I made people very cynical about linking justice and warfare, and so once more just war theory fell into disuse. Indeed, even one of the popes declared just war theory out of date! There are three important exceptions to these observations. The first is that many people strongly criticized the 1919 Treaty of Versailles as an unjust peace treaty. (But no one went on to articulate a general theory about what a just peace treaty fully should be. They contented themselves with particular observations, like “Germany was treated too harshly,” “Britain and France extended their empires out of greed,” “America simply let all this happen,” and so on.) The second exception was that, with the post-war formation of the League of Nations, there was an attempt to change *jus ad bellum* rules away from self-defence (or “unilateralism”) towards collective security and mutual responsibility and protection in the face of aggression (or “multilateralism”). The final exception was that the chemical weapons deployment experienced in the trenches of Europe spurred the development and signing of a treaty, in 1925, banning the use of poisonous gas in wartime. But it must be admitted that these were all political and legal developments, and they went unaccompanied by any new major piece of just war theory at this time.²⁷

Rebirth and World War II

The Kellogg-Briand Pact of 1928 was an ambitious piece of international law, designed to shrink radically the number of just causes for going to war, and to buttress the war-authorizing power of the League of Nations. We see,

during this period, the first attempts at making the declaration of war an *international* responsibility and power. The rise of the fascist dictatorships in the 1930s effectively gutted both these institutions but it also resurrected interest in just war theory. Many Catholic scholars, and political leaders like Winston Churchill, explicitly used just war concepts to justify and generate public support for the war against Hitler's Nazis in Germany and Mussolini's fascists in Italy. Indeed, dissidents in Spain used just war theory to justify their civil war against Franco's fascists earlier in the 1930s. While not invoking just war theory explicitly, Franklin D. Roosevelt harkened all the way back to Aristotle when he explained that America had to enter the war in 1941 as a matter of self-defence following Japan's Pearl Harbor attacks.²⁸

By 1941, the world no longer dismissed just war theory as sterile and of use only to European scholars of the history of Catholicism. Systematic works appeared, including English-language works by John Ryan and John Ford. Extensive effort was put into the justification of the war on the part of the Allies. But this rebirth was not merely one-sided, superficial Allied propaganda. It was the just war community, after all, who first raised the questions and criticisms which still haunt historians today: should the Allies, especially Britain, have engaged in deliberate terror bombing of Germany's residential areas—and emphatically the purposeful razing of Dresden to the ground in 1945? Should America ever have used the atomic bomb on Japan? There were no clear laws on these unprecedented issues—and so thoughtful people turned back to just war theorists for answers, or at least guidelines. It is fair to say most just war theorists were critical of these Allied actions, and this criticism perhaps reached a highpoint after the war when Elizabeth Anscombe wrote a much-read pamphlet, "War and Murder," criticizing Oxford University's decision to award an honorary doctorate to Harry S. Truman, the US president who had ordered the atomic bombing of Hiroshima and Nagasaki.²⁹

World War II, and its immediate aftermath, provided great opportunities for just war theory, and the era bears its political marks in a number of ways. Grotius' emphasis on proper punishment found ready application in the Nuremberg and Tokyo war crimes tribunals, the first in modern history. The 1945 Charter of the United Nations (UN) rigorously addressed *jus ad bellum*, placing even more emphasis on collective security and international authorization than the now-defunct League of Nations did—but realistically allowing for armed self-defence as well. Echoes of the old votes of the University of Salamanca could be heard in the set-up of the UN's Trusteeship Council, an institutionalized process for aiding the gradual end to European colonialism, especially in Africa and Asia. But the clearest impact of just war theory resided in the 1948 Convention Banning Genocide, and the landmark 1949 Geneva Conventions, which are devoted to *jus in bello*, especially regarding the specification of "benevolent quarantine" for prisoners of war. These are two of the most important laws of armed conflict to this day.³⁰

Of course, these international laws were not simply the effects of just war theory—indeed, the former impacted the latter just as much. The main impetus for these legal reforms was the Holocaust and its horrors, which also inspired the 1948 Universal Declaration of Human Rights.³¹ This was a moment of great significance for just war theory, because now theorists saw that the new moral basis for the age was destined to be human rights, and so they got to work interpreting traditional just war theory in light of human rights. This took some doing, and it was not clearly done in a satisfying way until perhaps the 1970s. But the move was made and it probably saved just war theory from ethical oblivion. In other words, and at long last, the just war tradition essentially had to welcome John Locke in from the cold, and forcefully and fully deal with core issues of state legitimacy, human rights protection and above all the connection between the two. This linkage is one of the most vital, and still challenging, questions to this day—as aspects of this book will demonstrate.

Our Time

The onset of the nuclear age posed new problems for just war theory, and attention focused on the morality of atomic weapons and the ethics of nuclear deterrence (i.e., threatening to use such weapons so that the enemy will not use theirs first). This was especially the case in the 1950s and early 1960s, and then again during the 1980s when Ronald Reagan was US president. But America's experience during the Vietnam War, from 1955–75, sparked the biggest development in just war theory since at least World War II and perhaps even stretching all the way back to the Spanish Conquest. It is important to note that, historically, it tends to be the questionable wars—the Spanish Conquest, the Wars of Religion, Vietnam—which provoke the most soul-searching, and thus the biggest developmental spurts in just war theory. (Some might wish to include on that list America's 2003 invasion of Iraq.)

The centre of action, in just war theory, moved at this time firmly *out* of the Catholic Church and *into* the corridors of international law and power, as well as into the groves of academe and even the streets of non-violent protest. English-language works, especially by Americans, now became the “must-read” contributions to the theory—and it has stayed that way since, though of course one cannot discount the contributions of others, such as Australians, Canadians, Europeans and Israelis. (Israel's many post-1948 wars have sparked keen interest there in just war theory.) In the 1960s, the work of Ian Brownlie, Joseph McKenna, William O'Brien, Robert Osgood, Paul Ramsey and Robert Tucker stood out very prominently.³²

In the 1970s, literally scores of important articles appeared, such as those published in the distinguished journal *Philosophy and Public Affairs* by R.B. Brandt, R.M. Hare, R.K. Fullinwider, David Luban and Thomas Nagel. In terms of books, Sydney Bailey, Yehuda Melzer, J.N. Moore and Richard

Wasserstrom penned vital works.³³ But Michael Walzer's *Just and Unjust Wars* of 1977 remains the breakthrough work of that decade, directly inspired by Vietnam. It is not much of an exaggeration to say this work has been to current just war theory what Grotius' *The Law of War and Peace* was to prior centuries. As such, it will be referred to throughout this work; there's simply no avoiding it. Even when one disagrees with it, Walzer's book remains the fundamental contemporary reference, which everyone "in the business" must read and understand. It is in Walzer's book, above all, that the cementing of human rights theory within the core propositions of just war theory occurs and is offered satisfying treatment. On the application side, Walzer's book is devoted to showing that World War II embodies "just," whereas Vietnam embodies "unjust," wars.³⁴

In terms of the laws of armed conflict, so many treaties were signed in the 1960s and 1970s that I simply direct the reader to Appendix A for topics, listings and locations. It was a tumultuous and therefore fertile time for just war theory. Just war theory grows in spurts, in reaction to war-ravaged events and—as noted—especially in response to wars about which people are sceptical and critical.

The 1980s, 1990s and forward have seen an explosion in the number of just war theorists, and important developments in the theory itself. In the 1980s, nuclear deterrence was front and centre, as Reagan's America stared down the USSR, and the Catholic Church got back in on the action, so to speak. In 1983, the US Catholic Bishops published a high profile reflection on nuclear ethics which was influential, eliciting responses from European bishops, and academics and think-tanks worldwide. Also important was the topic of training new soldiers in ethics and international law. The US military in particular—stung by episodes of misconduct during Vietnam—invested large resources in the education of its soldiers and officers in just war theory. Other militaries followed suit. Walzer was a primary reference, as were new works by Sidney Axinn, Anthony Hartle, James Turner Johnson, Douglas Lackey, John Langan, Robert Phillips, Jim Sterba and Jenny Teichman. Johnson deserves special mention as probably the most learned historian of the tradition. The morality of indirect (but still armed) American intervention in such Latin American countries as Nicaragua—highlighted by the Iran-Contra scandal—was also very topical in the 1980s, with proponents justifying the controversial moves as part of the larger chess game of defeating the USSR. Sometimes such figures justified the Cold War struggle between America and Russia in realist terms as a fight for survival between enemies; other times they made explicit appeals to morality, urging the need to destroy "the evil empire" and its godless, rights-violating system of police-state communism.³⁵

In the 1990s, following the end of the Cold War and America's triumph in it, just war theorists returned to issues of collective security and the vigour of the United Nations, which the Cold War in many ways had sapped and

frustrated. The 1991 Persian Gulf War generated a big just war literature—indeed, US President George Bush Sr. argued for the war using just war language³⁶—as did the nasty civil wars and humanitarian crises ranging from Bosnia to Somalia, from Rwanda to Kosovo. We will detail each of these wars later in this text. The ethics of humanitarian intervention became the largest just war issue that decade, and it generated deep critical thought about whether the strong defence of Westphalian state sovereignty and non-intervention in local affairs—dating back to Grotius, Pufendorf and Vattel—was in fact a mistake. Perhaps, instead, renewed attention to the pro-humanitarian intervention doctrine of, say, Vitoria was more in order. The catastrophic consequences of the failure to intervene in Rwanda—800,000 people slaughtered, in an attempted genocide, in the spring of 1994³⁷—put some clear pro-intervention flavour back into many just war works, and resulted in pro-intervention policies on the ground later in Bosnia and Kosovo.

Intervention was the big *jus ad bellum* issue of the 1990s; the big *jus in bello* issue was the set of sweeping sanctions slapped on Iraq following its defeat in the Persian Gulf War by America. Did the sanctions violate the principle of discrimination, wrongfully inflicting serious harm on millions of innocent civilians? We'll consider these issues in detail in Chapters 4 and 5. Prominent just war pieces were penned this decade by: Paul Christopher, Jean Bethke Elshtain, G.S. Davis, Michael Ignatieff and Richard Regan.³⁸ The major reform in the laws of armed conflict was the 1998 Treaty of Rome, which created the first permanent and international war crimes tribunal, set up to judge war crimes committed anytime, anywhere, by anybody. Grotius the punisher would have been pleased.³⁹

This brings us to our present decade, and of course we're not far enough removed to make good judgments about which works will last and which issues will endure the most. Scores of smart people are actively creating important pieces of writing and others are crafting vital military and foreign policies on the ground. Clearly, though, the 9/11 terrorist attacks on the United States had a dramatic impact on the debate, and raised questions in particular about just wars against non-state actors. The subsequent 2003 invasion of Iraq created heated debate about the justice of pre-emptive war and/or preventive strikes. This is one issue around which there is very little consensus among just war theorists, stretching all the way back to its origins: may you justly strike another before he strikes you, if you sincerely believe he is just about to do so? Or is it, as Vitoria says, that you cannot punish someone for a sin they have yet to commit? These are big issues for Chapter 3.

An even deeper issue is whether, as some have argued, the laws of war and just war theory must be completely rethought in the Age of Terror. Why might this be? Well, the laws of armed conflict and just war theory have generally been constructed assuming that state governments, and their armed forces, are the main belligerents in the given conflict. But 9/11 revealed that non-state actors, like terrorist groups, can now pose state-scale levels of

threat and destruction. Are new principles needed? Or do we have the tools already to evaluate the so-called “War on Terror”?⁴⁰

The difficult, multi-faceted, and ongoing occupations of Iraq and Afghanistan raise profound issues of *jus post bellum*. Just war theorists are increasingly coming around to the importance of this topic, which Walzer himself has recently called one of the two most vital for the theory’s future. The other is the *jus in bello* issue of soldiers striving to carve out a risk-free fighting environment for themselves via technology, perhaps off-loading their own risks upon powerless civilians. (Think of the long-range, high-altitude bombing of Kosovo and Serbia in 1999.)⁴¹ I might add a third issue to Walzer’s list of the most consequential current topics, and that concerns the ethics of detaining and torturing suspected terrorists to gain information thought needed to prevent future terrorist attacks. And let’s add a fourth while we’re at it: the justice of overthrowing governments and setting out, right from the start, to forcibly reconstruct their societies.

Conclusion

It might seem strange, in this sweeping but still substantial history of just war theory, that no mention has been made of realism or pacifism. This was deliberate, since the focus was on just war theory and, to a lesser extent, the laws of armed conflict. But of course the other two doctrines have their own robust histories, and at times these histories have had an impact on just war theory. This is true of realism in particular. Realism has been the main rival to just war theory, in terms of affecting the behaviour of those with the war power. Pacifism is principled, and it has had its own kind of influence through time, but pragmatically no nation-state or empire has ever based its foreign policy on pacifism. The only exceptions to this might be old, isolated religious communities and conquered nations engaging in non-violent (or, at least, non-warring) resistance.

Which has had more influence on foreign policy: realism or just war theory? The answer is that there is a kind of cycle, and at times realism is on the ascendant and at others just war theory is. Walzer says just war theory is ascendant in the post-Cold War era.⁴² Perhaps this fact is connected with American hegemony during this era and America’s self-image as an ethical force in world history, concerned with fighting only just wars. There is some irony in traditionally Catholic just war theory living and thriving perhaps most strongly in historically Protestant America. But perhaps that’s not relevant. Perhaps it is more a fact, just like with Rome and Spain in their days, that the most powerful nation just naturally asks itself the most questions about the justice of its influence and its frequent resort to force. There is something substantial to Walzer’s claim, no doubt. Recent armed conflicts have indeed been justified by vocal moral appeals to just war concepts like

humanitarian intervention and self-defence. Other people have criticized the exact same wars using just war rules like right intention, proper authority, last resort and proportionality.

But perhaps the triumph of just war theory is already fading. The post-9/11 world does, after all, concern itself mightily with national security, and some have suggested the ongoing War on Terror is the next Cold War. And the Cold War (from approximately 1946–91) was obviously a time of realism triumphant, with the balance of nuclear terror and the cold-blooded chess game of geopolitical struggle between communism and capitalism. Only time will tell, of course. Other commentators view the recent wars not as isolated conflicts to be evaluated one-at-a-time with the tools of just war theory. They view them, rather, as parts of a larger, over-all strategy—an empire-building strategy—by the United States as it seeks (in arch-realist fashion) to protect itself, grab resources and to extend its domain, values, economy and influence as far and as deeply as it possibly can.⁴³

More on the specific histories of realism and pacifism, and their competition with just war theory, will be found in Part Two. For the moment, now that we have completed our sketch of the history of just war theory—and laid down some context of people and places, of wars and nations—we must turn to the conceptual task of understanding the rules and values of present-day just war theory, and then applying them to recent cases of armed conflict.

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